No Fairness Without Justice

The Algorithmic Justice Manifesto (Critical Analysis 2)

1. Opening statement

The Artificial Intelligence will also be told to make decisions cleaner, faster, and fairer. We are informed that bias will disappear in the face of sufficient data to the machines, leading to objectivity. We are informed that equity is something that can be programmed as a functional enhancement. But fairness is not a setting. Fairness is not a checkbox. Fairness is not a dashboard.

Equality has turned out to be a convenient narrative that makes institutions appear ethical as they automate inequality. Under the banner of the so-called innovation, AI is now being actively introduced into the opportunities and punishments: who can be employed, who is dangerous, who is trustworthy, who is noticeable, who is dispensable. Such systems are not neutral. They are cultural artifacts - constructed within the economies of extraction, politics of surveillance, and histories of racism, sexism, and class power (Benjamin, 2019; Crawford, 2021; Zuboff, 2019).

This manifesto suggests a change of fairness to justice. Justice requires responsibility, fairness can be measured. Justice should be practiced; fairness can be done. When AI is permitted to control the daily life, it should be controlled in return through the law, communities, and democratic accountability rather than the corporate PR.

2. The problem

The core controversy is not the fact that artificial intelligence acts unfairly at times. The crisis lies in the fact that AI is being seen as a legitimate means of governing the society without revealing the choices, values and interests that run it. In software cultures, political issues are re-packaged as technical riddles: discrimination is now data bias; exploitation is now efficiency;

social harm is now edge cases (Crawford, 2021; Noble, 2018). Fairness talk can also be a process of so-called fairness-washing: a mechanism of stabilising belief in systems that are supposed to be challenged.

Critical scholarship demonstrates why digital systems often perpetuate inequality since they are trained on unequal worlds and implemented in unequal institutions (Eubanks, 2018; O'Neil, 2016). The interventions of fairness are usually based on the performance of the model instead of the power dynamics around a system: who is specifying the objective, who is benefiting, who suffers, and who is entitled to decline (Selbst et al., 2019). When developers strive to mitigate bias, they usually tend to consider social categories as fixed variables instead of domination relations that are historically produced (Benjamin, 2019). This is creating a superficial politics: we are quantifying inequality without challenging the cause of inequality.

This crisis is further added to by generative AI. Major language models are capable of generating fluent persuasive text that reads like an expert and makes assertive mistakes and fake references, commonly referred to as hallucinations (Bender et al., 2021). This is important to justice since a regime that can generate credible lies on a large scale may become a generator of institutional delusion: AI verdicts with AI reasons; AI evidence washing out accountability. This can not be addressed with a simple command of AI to not hallucinate. It is an architectural issue because such systems are designed to forecast probable patterns of words, not to establish truth, accountability, and care (Bender et al., 2021). The risk is not the biased outcomes only when they are adopted by the institution; it is the normalisation of unverifiable authority.

Therefore, it is more than unfair algorithms. The cultural and political project in question is that of algorithmic governance: the making of power seem inevitable, technical, and nondebatable with the help of computation (Gillespie, 2014). By accepting that the end result should be fair we can fall to the task of perfecting the wrong system- making injustice more efficient.

3. The evidence

The evils of algorithmic systems are not imaginary. They are represented in the daily environments of infrastructures of search, platforms, policing, welfare, and work.

Knowledge that is turned into a common sense is determined by search and information systems. The work by Noble shows how the ranking, motivation of advertisements, and cultural assumptions in software can recreate the racist and sexist hierarchies via search engines (Noble, 2018). Under these conditions fairness cannot be distilled into neutral relevance, but into which lives and histories of people are legible, whose identity is sexualised or criminalised, and onto what humanity is exploited as valuable data.

Predictive systems in policing and surveillance frequently are based on biased records of the past- making predicting risks appear like over-policing and imposing enforcement to the same areas. This is why Benjamin states that new technologies can act as a New Jim Code and modernises inequality by introducing the impression of innovation (Benjamin, 2019). These systems have an outcome that is not a bug when they are deployed, but a continuation of institutional logics.

In the welfare and government services, computer-based eligibility and fraud-detection systems can create a more severe punitive approach towards the poor and redesign care as an expenditure issue. Eubanks demonstrates how digital technologies have been utilized to control poverty by surveillance and bureaucratic suspicion, and how vulnerable groups are most likely to suffer (Eubanks, 2018). In this case, fairness metrics cannot replace democratic questions: is it necessary to automatize it in the first place, and who are the victims of its failure?

Harms in computer vision and biometric technologies are manifested in disproportionate errors and disproportionate implementation. The literature of analysis of facial analysis systems has recorded that there exist extreme performance differences based on gender and skin tone-evidence that the data on training is not neutral and that technical systems are a mirror of social exclusions (Buolamwini and Gebru, 2018). However, even a more precise facial recognition system is not always ethical; the greater precision, the better the ability to spy, particularly in the areas where there is poor control (Crawford, 2021; Zuboff, 2019).

The visibility is also controlled by platform systems: what gets promoted, demonetised, suggested, or deleted. Gillespie suggests that algorithms become cultural actors that form the discourse of the population and the participation limits (Gillespie, 2014). In the case of opaque moderation and recommendation, communities that are affected by such decisions cannot challenge decisions meaningfully. In this regard, fairness does not simply need technical solutions but needs people to be accountable of the ability to define speech and attention.

In these instances, a trend can be noticed: artificial intelligence is integrated in mining. They are based on statistics gathered throughout every day life; on invisible labour; on environmental costs; and on institutions that already allocate harm unfairly (Crawford, 2021). It is not about learning to be less biased. The main point is that automation is a political action.

4. The call to action

Justice should be the constraint of fairness-as-metric, should it have taken that as its alibi. Justice implies binding obligations, significant rejection, and actual damages of harm. It involves the denial of the myth that social responsibility can be substituted by technical optimisation.

To start with, we require enforced accountability. The deployment of AI in consequential decisions at institutions should be legally liable to the result, such as discrimination, exclusion, and wrongful harm. It is never acceptable that the algorithm did it. In cases when AI is involved in a decision, it remains the humans and organisations who decided to use it who are responsible (O'Neil, 2016; Selbst et al., 2019).

Second, we require practical rather than performative transparency. Transparency is no polished code of ethics or vague definition. It must be documented and examined independently: purpose of the system, the description of the training data, the boundaries of the evaluation, and the risk awareness. Culture works such as datasheet datasets and model cards are indicative of a traceability culture instead of hype (Gebru et al., 2018; Mitchell et al., 2019). Documentation should be accompanied by outside access or transparency will be theatre.

Third, we demand the right of protesting and the right of saying no. Individuals who are taken through the algorithmic decision making processes should have easy means through which to appeal, request that the results are reviewed by humans, and provide remedies. The consent should be substantial particularly when the data is obtained by default. An autocratic society would not be a fair society to live in, because to join it would be to lose control over oneself.

Fourth, we require community power when designing and deploying. The most impacted people, particularly the marginalised groups, should be able to control the decision to construct systems and their locations of application. Involvement is not a post-deployment consultation meeting; involvement is joint power over objectives, trade-offs and limits. This is critical since the issues of fairness are frequently the issues of framing: whose concept of success is coded (Selbst et al., 2019; Benjamin, 2019).

Fifth, we require constraints and prohibitions in high stakes situations. Other fields are too consequential, too coercive or too historical unequal to be redressable by superior datasets. Police AI, border AI, judicial risk scoring AI, and welfare punishment AI must be subject to severe bans or moratoria unless there is a clear democratic mandate, substantial control, and demonstrations of non-harm. Systems that were meant to be controlled cannot be redeemed by fairness.

Sixth, we require truth standards to generative AI applied in institutions. When generating policies, summaries, explanations, or information to be made public, generative systems need to be limited by verification: source-traceable, audit trails, and human responsibility and accountability of each assertion. It is not a trivial fault: hallucination poses a danger to the common sense. Power should not be justified using systems that cannot reliably justify it (Bender et al., 2021).

Lastly, we require the change in the education and professional ethics of AI. The training of the technical without historical and cultural awareness creates systems of repetition of harm under the guise of progress. The AI practitioners should study that classification is never innocent, data is never raw, and efficiency is not morality (Noble, 2018; Crawford, 2021). It is not to develop more just algorithms with unfair institutions, but rather to develop the institutions that do not require algorithm domination.

5. Vision / conclusion

We fantasize an alternate software society, one in which the technological power is not a fate, and in which AI is not a god in a bottle. Algorithms systems in this future are controlled as other infrastructures are: they are publicly accountable, contestable, and influenced by democratic principles. The criteria of measuring innovation are not the scale, speed and profit, but whether it augments the human dignity.

Ethical AI would imply the reduction of systems applied to coercive settings and increased investment in civic capacities: civic-interest technology, external auditing, available digital rights, and community-centered design. It would not follow a marginalised community as a data point, but make them subjects of agency in politics. It would not approve surveillance as a normal business template and it would not allow the everyday life to be turned into prediction of behavioural (Zuboff, 2019).

Above all, algorithmic justice would bring to an end the illusion that damage can be fixed once it has been rolled out. It would acknowledge what the study of critical scholarship has demonstrated over and over again: AI consists of histories, institutions, labour, and power (Benjamin, 2019; Crawford, 2021). Different governance, different priorities, different incentives, different limits, is required, were we to desire it.

So, we declare:

No fairness without justice.

No responsibility-free automation.

No ethical AI without rights in existence.

No future in which machines become the alibi of power.

It is not to put injustice on its smooth track. The idea is to eliminate the creation of systems that need injustice to operate.

References

Benjamin, R. (2019) *Race After Technology: Abolitionist Tools for the New Jim Code*. Cambridge: Polity.

Bender, E.M., Gebru, T., McMillan-Major, A. and Shmitchell, S. (2021) 'On the dangers of stochastic parrots: Can language models be too big?', in *Proceedings of the 2021 ACM Conference on Fairness, Accountability, and Transparency (FAccT '21)*. New York: ACM, pp. 610–623.

Buolamwini, J. and Gebru, T. (2018) 'Gender shades: Intersectional accuracy disparities in commercial gender classification', *Proceedings of Machine Learning Research*, 81, pp. 1–15.

Crawford, K. (2021) *Atlas of AI: Power, Politics, and the Planetary Costs of Artificial Intelligence*. New Haven: Yale University Press.

Eubanks, V. (2018) *Automating Inequality: How High-Tech Tools Profile, Police, and Punish the Poor*. New York: St Martin's Press.

Gebru, T., Morgenstern, J., Vecchione, B., Vaughan, J.W., Wallach, H., Daumé III, H. and Crawford, K. (2018) 'Datasheets for datasets', *arXiv preprint*, arXiv:1803.09010.

Gillespie, T. (2014) 'The relevance of algorithms', in Gillespie, T., Boczkowski, P.J. and Foot, K.A. (eds.) *Media Technologies: Essays on Communication, Materiality, and Society*. Cambridge, MA: MIT Press, pp. 167–194.

Mitchell, M., Wu, S., Zaldivar, A., Barnes, P., Vasserman, L., Hutchinson, B., Spitzer, E., Raji, I.D. and Gebru, T. (2019) 'Model cards for model reporting', in *Proceedings of the Conference on Fairness, Accountability, and Transparency (FAT* '19)*. New York: ACM, pp. 220–229.

Noble, S.U. (2018) *Algorithms of Oppression: How Search Engines Reinforce Racism*. New York: New York University Press.

O'Neil, C. (2016) *Weapons of Math Destruction: How Big Data Increases Inequality and Threatens Democracy*. New York: Crown.

Selbst, A.D., Boyd, D., Friedler, S.A., Venkatasubramanian, S. and Vertesi, J. (2019) 'Fairness and abstraction in sociotechnical systems', in *Proceedings of the Conference on Fairness, Accountability, and Transparency (FAT* '19)*. New York: ACM, pp. 59–68.

Zuboff, S. (2019) *The Age of Surveillance Capitalism: The Fight for a Human Future at the New Frontier of Power*. London: Profile Books.

AID Statement

Tool: ChatGPT

Used to generate an initial outline and to brainstorm possible manifesto topics and titles. All arguments, writing, and final editing were completed by me.